

7. CIANCI, ET AL. v. GEISLER, 23CV0290**Motion to Change Venue**

On February 3, 2026, defendant Marcus Geisler (“defendant”), who is representing himself in *pro per*, filed the instant motion to change venue to Ventura County. Proof of service attached to the motion shows it was electronically served upon counsel for both plaintiffs, Phil Ciani and Susan Ciani (collectively, “plaintiffs”), that same day. The court notes that neither of the other two named defendants – Marcus Smith and Auto Image⁴ – have appeared in the action and therefore, service of the moving papers is not required on those parties. (See Code Civ. Proc., § 1014; see also, *Winikow v. Superior Court* (2000) 82 Cal.App.4th 719, 727 [service of notice not required on defendants who have not yet appeared in the action].)

1. Background

This case arises from the private sale of a 1956 GMC Panel automobile. The complaint alleges defendants advertised the vehicle in the County of El Dorado and the parties entered an oral sale agreement in the County of El Dorado.

Defendant declares he is a resident of Ventura County and conducts business in Ventura County. (Geisler Decl., ¶ 1.) He advertised the vehicle on Facebook Market Place; he advertised “locally” and did not select any county other than Ventura County. (Geisler Decl., ¶ 2.) Defendant was contacted in Ventura County at his place of business by plaintiffs’ son. (Geisler Decl., ¶ 3.) Subsequently, plaintiff Phil Ciani mailed defendant a check toward the purchase of the vehicle. (Geisler Decl., ¶ 3.) Plaintiff later arrived in Ventura County to pay the remaining balance and take delivery of the vehicle. (Geisler, ¶ 4.) After test driving the vehicle, however, plaintiff elected not to complete the purchase. (Geisler, ¶ 4.)

⁴ Plaintiffs’ complaint alleges that “Marcus Smith” is an alter ego for defendant; and defendant is the owner, or an owner, of “Auto Image.” (Compl., ¶ 2.)

Plaintiffs' complaint alleges breach of contract, promissory fraud, and declaratory relief.

2. Legal Principles

Code of Civil Procedure section 396b, subdivision (a) provides, in relevant part, "if an action or proceeding is commenced in a court having jurisdiction of the subject matter thereof, other than the court designated as the proper court for the trial thereof, under this title, the action may, notwithstanding, be tried in the court where commenced, unless the defendant, at the time he or she answers, demurs, or moves to strike, or at his or her option, without answering, demurring, or moving to strike and within the time otherwise allowed to respond to the complaint, files with the clerk, a notice of motion for an order transferring the action or proceeding to the proper court, together with proof of service, upon the adverse party, of a copy of those papers. Upon the hearing of the motion the court shall, if it appears that the action or proceeding was not commenced in the proper court, order the action or proceeding transferred to the proper court." (Code Civ. Proc., § 396b, subd. (a).)

3. Discussion

"It is well established that a defendant is entitled to have an action tried in the county of his or her residence unless the action falls within some exception to the general venue rule. [Citations.]" (*Brown v. Superior Court* (1984) 37 Cal.3d 477, 483.) Here, defendant declares he was contacted at his place of business in Ventura County by plaintiffs' son. Plaintiff later arrived in Ventura County to pay the remaining balance of the vehicle and take delivery of the vehicle. Pursuant to Code of Civil Procedure section 395, the court finds Ventura to be a proper county for trial.

Also, as previously noted, plaintiffs filed no opposition. If opposition papers are not timely filed, the court, in its discretion, may deem it a waiver of any objections and treat it as an admission that the motion is meritorious and may grant the motion. (Local Court Rule 7.10.02(B).)

The court deems plaintiffs' failure to oppose as an admission that the motion is meritorious. The motion is granted.

TENTATIVE RULING # 7: THE COURT GRANTS DEFENDANT'S MOTION TO CHANGE VENUE TO VENTURA COUNTY. NO HEARING ON THIS MATTER WILL BE HELD (*LEWIS v. SUPERIOR COURT* (1999) 19 CAL.4TH 1232, 1247), UNLESS A NOTICE OF INTENT TO APPEAR AND REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. NOTICE TO ALL PARTIES OF AN INTENT TO APPEAR MUST BE MADE BY TELEPHONE OR IN PERSON. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.